

Opinion of the Court

respect to the claim that he conspired to present such testimony. *Id.*, at 841. To allow liability to be predicated on the alleged conspiracy, the court concluded, “‘would be to permit through the back door what is prohibited through the front.’” *Ibid.* (quoting *Jones v. Cannon*, 174 F. 3d 1271, 1289 (CA11 1999)).

We granted certiorari to resolve a Circuit conflict regarding the immunity of a “complaining witness” in a grand jury proceeding, 562 U. S. 1286 (2011), and we now affirm.

II

Section 1983, which derives from § 1 of the Civil Rights Act of 1871, 17 Stat. 13, creates a private right of action to vindicate violations of “rights, privileges, or immunities secured by the Constitution and laws” of the United States. Under the terms of the statute, “[e]very person’ who acts under color of state law to deprive another of a constitutional right [is] answerable to that person in a suit for damages.” *Imbler v. Pachtman*, 424 U. S. 409, 417 (1976) (citing 42 U. S. C. § 1983).

A

Despite the broad terms of § 1983, this Court has long recognized that the statute was not meant to effect a radical departure from ordinary tort law and the common-law immunities applicable in tort suits. See, e. g., *Burns v. Reed*, 500 U. S. 478, 484 (1991). More than 60 years ago, in *Tenney v. Brandhove*, 341 U. S. 367 (1951), the Court held that § 1983 did not abrogate the long-established absolute immunity enjoyed by legislators for actions taken within the legitimate sphere of legislative authority. Immunities “well grounded in history and reason,” the Court wrote, were not somehow eliminated “by covert inclusion in the general language” of § 1983. *Id.*, at 376.

This interpretation has been reaffirmed by the Court time and again and is now an entrenched feature of our § 1983 jurisprudence. See, e. g., *Pierson v. Ray*, 386 U. S. 547, 554–